

Form No. INC-13



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to sections 4 and 8 of the Companies Act, 2013 and rules made thereunder read with Schedule I]

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

1 The name of the company is

DHARMDEV SAH SAMAJIK
KALYAN SANKALP FOUNDATION

2 The registered office of the company will be situated in the State of

Bihar

3 (a) The objects to be pursued by the company on its incorporation are:

- 1.To promote social development and welfare by initiating, supporting, and implementing programs aimed at poverty alleviation, education, healthcare, women's empowerment, skill development, rural development, and upliftment of underprivileged communities.
- 2.To undertake activities for the protection and conservation of the environment, including afforestation, tree plantation, pollution control, water and soil conservation, promotion of renewable energy, sustainable agriculture, waste management, biodiversity preservation, awareness campaigns, and projects for ecological balance in rural and urban areas.
- 3.To promote human rights and social justice by facilitating free or subsidized legal assistance, awareness programs, training, and advocacy for protection of fundamental rights, prevention of discrimination, safeguarding rights of women, children, differently abled, senior citizens, and to collaborate with institutions, government agencies, and organizations

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To accumulate capital by means of monthly subscription fees or otherwise from members and also obtain money from members or any other persons on such security on such terms as the Company may from time to time arrange and accept and to accept donations, contribution grants either in cash or in kind from any person, persons, companies, corporations, institutions on such terms and for such objects which are in conformity with the objects and on conditions, including the conditions of associating the name of such person, or persons and such purpose or purposes are in conformity with the object of the Company.

2. To accumulate the income of the funds of the Company and to transfer the same with the corpus unless otherwise determined to be as accumulated.

3. To purchase, acquire, take on lease, sub-lease, exchange, hire, mortgage or otherwise any movable properties including furniture,, fixtures, books, conveyances, appliances, instruments, vehicles etc, or immovable properties and any rights and privileges necessary or convenient for the purposes of the Company and to construct, rejuvenate, rehabilitate and develop immovable property consistent with the object or otherwise deal with all or any part of the assets and rights of the Company for cash or any other consideration with a view to the promotion of the objects of the Company.

4. To appoint committees, advisory Boards, governing Body

for any institution, established, run and maintained by the Company.

5. To retain and/or employ skilled, professional or technical advisers and other staff and workers in connection with the objects of the Company and to pay there for such fees or remuneration as may be considered expedient.

6. To indemnify the employees, staff of the Company against proceedings, losses, costs, damages, claims and demands under Law of Equity or otherwise in respect of accidents, injury, death of employees, staff of the Company employed by the Company whether as workman, clerk, officer, technician, etc. and to appoint adviser or Insurers to investigate the circumstances of accidents, injury or damage and to take steps to prevent the same and to oppose, resist, compromise or satisfy fully or in part such claims and demands.

7. To provide education in academic and vocational courses and to conduct examinations and to award degrees, diplomas, scholarship, prizes in such form and manner as may be decided by the Company.

8. To construct, establish, run, conduct schools, college, universities, institutions, libraries, classes, workshops, hostels and provide learning, understanding, data information skills, training, instructions, practice sessions, guidance in all areas, branches, disciplines, fields, matters including asset management, aviation, banking, business and other allied areas in conformity with the objects of the Company.

9. To provide recreational

facilities both indoor and outdoor and to provide grocery, provisions, medical and other household goods of daily necessities at subsidized rates.

10. To construct or provide accommodation or other suitable rooms, buildings, places and to permit the same or part thereof to be used on such terms and conditions and for any performance for meetings, exhibitions, concerts, lectures, dinners, entertainment, reading, writing and newspaper rooms, library, refreshment rooms, dressing rooms and to furnish the same with furniture, implements, machinery and conveniences as may be deemed desirable and to provide garden, green houses, parks for recreation and amusement and entertainment.

11. To do all such other lawful things as may be incidental to or conducive to the attainment of the above objects.

12. To enter into any arrangements with any Government(s) or authorities whether Central, State, municipal, local or any other person, that may seem conducive to the objects of the Company.

13. To establish, support, or aid in the establishment of associations, institutions, funds and trusts as may be required in furtherance of the objects of the Company.

14. To pay all expenses, preliminary or incidental to the formation of the Company and its registration of the Company and all expenses, which the Company may lawfully pay, having regard to the provisions of the Companies Act, 2013, for or incidental to the raising of money for the Company.

15. To enter into contracts necessary or desirable for the conduct of the Company's

affairs, including contracts, indemnity or guarantee of any kind whatsoever.

16. To draw, make accept, endorse, discount, execute and issue cheques, promissory notes, hundies, bills of lading, railway receipt and other negotiable instruments of all description in connection with the Company's business.

17. To frame schemes, Rules and Regulations, for attaining of the objects of the Company and bye laws for conducting the affairs of the Company from time to time.

18. To engage the services of lawyers, bankers, brokers or any other experts, technical, any professional or otherwise, on such terms and conditions as may be determined.

19. To insure and keep insured the Company's property movable and immovable, as may be determined against any risk whatsoever.

20. To take such other steps and to conduct such other undertaking or activities as may be considered necessary or expedient for achieving and furthering the objectives of the Company.

21. To work with global consultants, Sector associations as well as experts from national and international agencies associated with research and development, training, skill development, course accreditation or other required specializations in the Sector.

22. To liaise and collaborate with various associations in the Sector or otherwise by suitable means (Memorandum of Understanding, collaboration agreements, partnering arrangements and others) for

course content development, arrangement of apprenticeships within the Sector.

23. To recruit trained manpower and source trainers and experts to ensure adequate participation by them in achieving the objects of the Company.

24. To accept grants, donations, assistance from public bodies, corporations, companies or persons or trusts and foundations for the purposes of achieving the objects of the Company and to manage efficient, effective and permissible fund flow and fund utilization in consonance with the objects stated herein.

25. To pay salary/wages/fee including consultancy, retainer-ship fee, sitting fee or rent and incur all other expenses needed in fulfillment of the objects of the Company.

26. To organize and participate in seminars, conferences, fairs related to the objects of the Company and to compile, collate, edit and publish technical reports and papers related to the objects of the Company.

27. To construct, erect, develop, improve, or alter and keep in repair any building acquired or used by or for the Company and to pull down or demolish or dispose off any building not so required or for renovation and reconstruction and to maintain, deal with, manage, control and administer the same.

28. To collect fee including membership fee, service charges, consultancy charge, compensations or such other monies as may be required in due course of functioning of the Company and in furtherance of

its objects.

29. To run educational institutions training institutions, research institutions, training of trainers establishment and any other establishment as may be required in due course of functioning of the Company and in furtherance of its objects, and publish books, reports journals, magazines, newspapers, periodicals, thesis, researches, writings, discoveries, documents, news and information.

30. To appoint legal and technical advisers (not being Members), bankers for the Company and to pay the necessary expenses for the same.

the doing of all such other lawful things as considered necessary for the furtherance of the above objects:

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union.

4 *The objects of the company extend to the

Whole India

5 (i) The profits, if any, or other income and property of the company, when-so-ever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

(ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.

(iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

(iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

(v) Nothing in these clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudent remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company

6 No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7 The liability of the members is limited.

8. Table applicable to Section 8/ Part I Section 8 company**A - MEMORANDUM OF ASSOCIATION OF
A COMPANY LIMITED BY SHARES**

Table A / B / C

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES/

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING SHARE CAPITAL/

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING SHARE CAPITAL)

Each member, undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for the payment of the debts or liabilities of the company contracted before he ceases to be a member and of the costs, charges and expenses of winding up, and for adjustment of the rights of the contributories among themselves such amount as may be required not exceeding a sum of Rs *

The share capital of the company is rupees, divided into

10000	Equity Share	Shares of	10	Rupees each	
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9 True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined, and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors

10 If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under Section 269 of the Act.

11 The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

☒ 12 We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of equity shares taken	DSC	Dated
1	BALRAM KUMAR, S/O NIRANJAN DWIVEDI EAST OF MAHAVIR CHOWK DUMRA Dumra Bihar 843302 Sitamarhi Bazar Sitamarhi India. Occupation- Social Services	0*1*3*4*	500 Equity,0 Preference		01/11/2025
2	APPUN KUMAR, S/O BIRESH SAH, VILLAGE NAUTAN, POJAMO SIWAN Gopalganj Bihar 841413 Jamobazar Gopalganj India Occupation- Social Services	M*Q*K*5*1*	500 Equity,0 Preference		01/11/2025
Total shares taken			1000 Equity,0 Preference		

Signed before me					
Membership type of the witness	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	*DSC	Dated
FCA	CA HEMANT KUMAR GUPTA	ADDRESS: B-11, BLOCK-B, SHANKAR GARDEN, VIKASPURI, DELHI, 110018, OCCUPATION: PRACTICING CHARTERED ACCOUNTANT	5*0*4*		01/11/2025